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New Bid to Claim Cranach Paintings Held by Norton Simon Museum

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For nearly two decades, the family of Jacques Goudstikker, an art dealer in Amsterdam whose collection was appropriated by the Nazis, have unsuccessfully sought to reclaim a pair of Renaissance masterpieces, "Adam" and "Eve," by Lucas Cranach the Elder, from the Norton Simon Museum in Los Angeles.

Multiple court rulings have gone against the heirs, whose case reached the U.S. federal appeals court in 2018 but was rejected.

Now the family has taken a new approach by transferring its rights to the Jewish Federation of Los Angeles, a nonprofit organization, and its president, who are pursuing the case under a recent California law designed to provide another avenue for claims that were previously dismissed.

The organization filed suit this past week in the Los Angeles Superior Court to recover the paintings.

If the federation wins, it has pledged to sell the paintings and use the proceeds to provide care, food and services to Holocaust survivors in Los Angeles.

"They are California residents and they can bring this claim to benefit Holocaust survivors," Charlene von Saher, Goudstikker's granddaughter, said in an interview. "That's a mission that's very important to my mother and I, to my whole family."

The paintings were among many looted from Jacques Goudstikker by Nazi Reichsmarschall Hermann Göring in 1940 and later recovered by Allied forces who returned them to Dutch officials. But the Dutch tribunal who handled claims after the war sold the two Cranachs to the heir of a family, the Stroganoffs, who pursued a competing claim, arguing that the two paintings had previously been seized by Soviet authorities after the Russian Revolution.

The Stroganoff heir later sold them to Norton Simon.

The Goudstikkers, and several experts, have challenged the Dutch decision, asserting that, among other things, there was not clear evidence that the Stroganoffs ever held the works at the time of the revolution.

But U.S. courts have ruled against the family, in one instance citing a legal principle, the "act of state" doctrine, that says it is not the place of American courts to interfere in decisions made by a foreign government.

Rabbi Noah Farkas, the president and chief executive of the Jewish Federation of Los Angeles, said recent legislative changes at both the federal and state levels made the new lawsuit possible.

The amended Holocaust Expropriated Art Recovery Act, signed into law in April, stipulates that U.S. defendants in Nazi-era restitution disputes are precluded from using some types of defenses, such as the "act of state" doctrine.

In response to the lawsuit, the Norton Simon Museum pointed to the fact that "court after court" has confirmed that the museum foundation has "proper title" to the paintings. In a statement, it rejected the idea that court rulings had been based on any technicalities and argued that the federal court decision that upheld the museum's good title had come "after years of discovery and testimony from the witnesses" and a "thorough analysis of the evidence."

"We will continue to make these important artworks accessible to the public, as we have since 1971," the museum

said.

Jacques Goudstikker bought the Cranach paintings in 1931 at an auction in Berlin of items that had been nationalized by the Soviet government. Although they were listed as having come from the Stroganoff Collection, experts have since challenged that provenance.

Asked this past week whether the museum has confirmed that the Stroganoffs once owned the paintings, the museum said there is no doubt that, before Goudstikker's purchase, the paintings had been looted by the Soviets "either from the Stroganoff family, as Count Stroganoff believed, or from a church in Ukraine."

Goudstikker's gallery inventory listed over 1,200 paintings, including the Cranach paintings, when he died in May 1940 while trying to escape the Nazi invasion.

He, his wife, Desirée, and their 1-year-old son, Edward, who went by Edo, escaped Amsterdam on a steamship to Dover, England, but Goudstikker died while crossing the English Channel at night: He fell and broke his neck.

Göring, Adolf Hitler's second-in-command, was photographed at the Goudstikker Gallery in Amsterdam a few days later, and claimed a large portion of the collection in a manufactured sale.

"Hermann Göring stole these paintings along with about 800 other ones," said Charlene von Saher said. "It's pretty clear when you look at the provenance and you see my grandfather's name and then you see Hermann Göring's name right after that. That's a big red flag, one that the Norton Simon Museum has chosen to ignore."

Desirée Goudstikker and Edo eventually ended up in the United States. After the war, Desirée Goudstikker received some compensation from the Dutch state. Edo died in 1996 and his widow, Marei von Saher, has been trying to reclaim his artworks for decades.

Over the years, the von Saher family has won some legal victories, including a landmark restitution case in the Netherlands in 2006, when 202 artworks were returned to them. Some had been on display in major Dutch museums for decades.

Jesse Gabriel, the California Assembly member who authored the state law adopted in 2024, said in an interview that it will make it harder for courts to throw out restitution cases on procedural issues. "The effort behind the law is to make sure that cases are decided on their merits," Gabriel said. He added, "These are cases that should be based on morality and justice."

Joel Greenberg, the president and founder of Art Ashes, a nonprofit organization that helps families recover art stolen during the Nazi era, said that if the Jewish Federation's case is successful, it could encourage more Holocaust claimants to come forward.

"It should also encourage museums to give the families what they're due," he added. "If they know that the cases will be heard on the merits, they can no longer hide behind technical defenses."

Charlene von Saher said the family is hopeful.

"They're exquisite, beautiful paintings, but they are not something I could possibly hang in my house," she said. "We've assigned the claim to the federation, because we believe in their mission and we want to help people."

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